



March 14, 2025

Networking and Information Technology Research and Development
National Coordination Office, National Science Foundation
Attn: Faisal D'Souza, NCO
2415 Eisenhower Avenue
Alexandria, VA 22314

Re: AI Action Plan

To Whom It May Concern:

Wayne A. Harper

President, NCSL
Senate President
Pro Tempore, Utah

John Snyder

Staff Chair, NCSL
Transportation Committee
Staff Administrator,
Kentucky Legislative
Research Commission

Tim Storey

Chief Executive Officer,
NCSL

Thank you for the opportunity to submit these comments on behalf of the National Conference of State Legislatures (NCSL), the bipartisan organization representing the legislatures of our nation's states, territories, commonwealths and the District of Columbia. This document is approved for public dissemination. The document contains no business-proprietary or confidential information. Document contents may be reused by the government in developing the AI Action Plan and associated documents without attribution.

State legislatures are America's laboratories of democracy and are the bodies willing and able to tackle emerging challenges. Currently, legislatures are wrestling with the most complex new technology issues and testing innovative solutions. Regarding AI, our bipartisan organization is working with all levels of governments and private industry to better understand AI and the myriad of opportunities and challenges surrounding its use. NCSL strongly believes intergovernmental collaboration is essential to developing a strong AI action plan to ensure this new technology is being used to enhance America's leadership and support and advance our citizens, businesses and communities.

Provided below are several resources NCSL has created to help states understand the basics of AI, learn its limitations, decide whether and when regulation may be necessary, and how it might be used across all sectors to encourage and advance innovation. NCSL's best assets, however, are our members: state legislators and legislative staff. As representatives closer to the people, these policymakers have been working across aisles in their states with the goal of fully realizing the benefits AI brings, mitigating its potential risks and educating our citizens to help build trust in this nascent technology. The vast expertise developed by state legislators and their staff across all areas of AI, as well as in the areas of privacy and cybersecurity, is nothing short of remarkable, having studied, drafted, introduced and enacted hundreds of state bills over the past several years. NCSL encourages the administration to solicit input from a bipartisan group of legislators as it begins and continues any stakeholder conversations and meetings to develop an AI action plan for America. NCSL and its members stand ready to work across party lines and with all stakeholders to help facilitate such

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exchanges, to develop a meaningful plan that unlocks the full potential of AI for America while identifying and mitigating any potential dangers.

NCSL's work in the AI arena has taken many shapes. Our organization has a longstanding [Task Force on Artificial Intelligence, Cybersecurity and Privacy](#) comprised of a bipartisan group of legislators from around the country with expertise in these important areas. The goal of the task force is to facilitate the exchange of ideas among legislators and private sector partners and to discuss and unpack practical solutions and legislative recommendations related to how AI can unlock potential while protecting consumer safety. This includes improving efficiency, decision-making and the delivery of government services, helping to upskill workers to take advantage of new job opportunities without compromising privacy and safety, enabling law enforcement to better detect, investigate and solve crimes, and improving health outcomes, to name a few areas of discussion and focus. Additional information about NCSL's Task Force on Artificial Intelligence, Cybersecurity and Privacy can be accessed through the link above. The task force has produced several recent publications highlighting state and federal legislative initiatives related to AI, as well as government and private sector collaborations.

AI Reports and Articles:

[AI Policy Toolkit](#)

[AI Primer](#)

[Government Use](#)

[Elections](#)

[Workplace](#)

[Law Enforcement](#)

[AI Trends](#)

In addition to the work of our task force, NCSL maintains a comprehensive database on all state-level AI work, including legislation across all 50 states that has been introduced and enacted, as well as corresponding databases on cybersecurity and privacy. During the 2024 state legislative sessions, most U.S. states and Washington, D.C. introduced AI bills and at least 31 states adopted resolutions or enacted legislation. Thus far in 2025, 46 states have introduced over 600 pieces of AI legislation on topics ranging from the use of AI in housing, health care, employment, criminal justice and education, to name a few areas.

State Legislation

AI State Legislation

[*Artificial Intelligence 2024 Legislation*](#)

[*Artificial Intelligence 2023 Legislation*](#)

Deepfake State Legislation

[*Deceptive Audio or Visual Media \('Deepfakes'\) 2024 Legislation*](#)

Cybersecurity State Legislation

[*2024 Cybersecurity Legislation*](#)

[*2023 Cybersecurity Legislation*](#)

Privacy State Legislation

[*2024 Consumer Data Privacy Legislation*](#)

[*2023 Consumer Data Privacy Legislation*](#)

NCSL relies on its 11 standing committees, comprised of bipartisan legislators from around the country, to develop policy on state-federal issues that guide our organization’s advocacy work in Washington, D.C. NCSL does not engage in state-level advocacy. The [NCSL Standing Committee on Technology and Communications](#) developed a policy resolution on AI in 2024, which was approved by the full NCSL membership. The resolution supports intergovernmental collaboration and a public awareness and education campaign to help Americans better understand AI technology. NCSL’s AI policy also calls for thorough and ongoing research on AI technologies with the National Science Foundation, the National Institute of Standards and Technology and other agencies for use by all levels of governments and federal laws that set a strong baseline of rights while preserving states’ ability to adopt their own laws to keep pace with rapid AI technological advances.

NCSL AI Resolution: [Policies for the Jurisdiction of the Technology and Communications Standing Committee](#)

AI is transforming our economy, how citizens live and work and how countries interact with each other. Much has been written and said about the “patchwork” of state laws that have appeared over the years legislating on AI and privacy and the difficulty this governing approach creates for those working in this space. To the contrary, NCSL believes state legislative leadership has created expertise where little existed in government, bipartisan innovative regulatory frameworks to review and model at the federal level, consumer education and awareness to build trust in something new, complex and unfamiliar, and collaboration across states as well as with civic organizations and private industry. State lawmakers are keenly aware that their window of opportunity is short, and the sense of urgency is high, and they plan to continue focusing on their mission to study and manage this powerful technology responsibly while not stifling the benefits and opportunities it brings.

We look forward to working closely with the administration and others to bring state policymakers’ expertise to bear as you develop a plan to solidify America’s position as the leader in AI and secure a brighter future for all Americans. For additional information or questions, you may contact us directly or NCSL’s legislative director, Technology and Communications, Barrie Tabin.

Thank you.

Sincerely,

Wayne Harper
NCSL President
President Pro Tempore
Utah Senate

Marcus C. Evans, Jr.
NCSL President Elect
Assistant Majority Leader
Illinois General Assembly